CONTRACT TITLE: Customer Controller Supply Agreement
CONTRACT ID: C04
CONTRACT TYPE: supply
EFFECTIVE DATE: 2027-01-01
PARTY A: Aurora Systems Private Limited (the "Company")
PARTY B: Harbor Works Private Limited (the "Counterparty")
GOVERNING LAW: India

1 PARTIES AND GOODS

1.1 Aurora Systems Private Limited (P01, Seller) supplies 100 AX-7 controllers from LOT-AX7 to Harbor Works Private Limited (P05, Customer) under order SO-AX7. Company legal notice address: aurora-legal@aurora.example. Counterparty legal notice address: legal@harbor.example.

2 DELIVERY AND DEPENDENCY

2.1 Signed on 2026-12-18 and effective 2027-01-01 through 2027-03-31. Aurora must deliver the entire conforming lot to Harbor by 2027-02-08 at 17:00 UTC. Aurora sources that same lot under C03, whose latest promised depot delivery is 2027-02-10 at 17:00 UTC. Transfer requires no minimum additional transit time under this agreement. Supplier failure does not excuse Aurora delay.

3 PRICE

3.1 Harbor owes INR 650,000 within 30 calendar days after full conforming delivery acceptance and receipt of invoice INV-SOAX7, by 17:00 UTC on the thirtieth following date. No acceptance or invoice is presumed. Late-payment interest is addressed in clause 19.1.

4 DELAY CHARGES

4.1 For each calendar date beginning on 2027-02-09 when the complete conforming lot remains undelivered to Harbor at 00:00 UTC, Aurora owes Harbor INR 5,000, capped at INR 50,000 per lot. Delivery later that date preserves that date charge. This is Aurora payable exposure. These charges are the sole monetary remedy for delay.

5 EVIDENCE

5.1 A receipt for SO-AX7 must identify all 100 conforming units and Harbor destination DEPOT-H. Arrival at Aurora DEPOT-A under C03 alone is not downstream delivery. An early downstream acceptance may prevent actual late-delivery charges without changing either contractual deadline.

6 CURE AND TERMINATION

6.1 A material breach notice must be received at aurora-legal@aurora.example. Aurora has 10 calendar days after receipt, until 17:00 UTC on the tenth following date, to cure. After that time an uncured breach permits a separate termination notice. Accrued delay charges survive cure or termination.

7 OTHER RECOVERY

7.1 Any credit recoverable from Forge under C03 must be reported separately from C04 liabilities. This agreement promises no reimbursement of Aurora downstream charges by Forge.

8 DISPUTES

8.1 Indian law and exclusive Pune court jurisdiction govern C04. The differing forum in C03 does not itself invalidate either agreement.

9 CLOCK

9.1 All times are UTC and days calendar days, without holiday adjustments. Date-only deadlines end at 17:00 UTC. Prices and charges exclude taxes.

10 EXECUTION

10.1 Mira Sen for Aurora and Rhea Nair for Harbor record execution on 2026-12-18.

11 LIMITATION OF LIABILITY

11.1 For service unavailability or delivery delay, the exclusive remedies and caps expressly stated in this agreement apply. For other claims, each party aggregate liability is capped at INR 1,000,000, except fraud, wilful misconduct and indemnity obligations. No cap from another contract is incorporated.

12 INDEMNITY

12.1 Aurora shall indemnify Harbor against all third-party claims and defense costs arising from the controllers or their use, including claims caused by Harbor own negligence. Harbor has no reciprocal indemnity obligation. This indemnity is excluded from the aggregate liability cap in clause 11.1.

13 CONFIDENTIALITY

13.1 Each party shall protect the other party non-public commercial, technical and personal information, use it only to perform this agreement, and restrict access to personnel bound by confidentiality. These obligations survive termination for 3 years, except information already public without breach.

14 COMPLIANCE

14.1 Each party shall comply with laws applicable to its own performance, including the Digital Personal Data Protection Act, 2023 where applicable and GDPR for processing within its applicable scope. Where personal data is processed, access controls and documented incident-response procedures shall be maintained. No ISO certification is represented by this clause.

15 ASSIGNMENT

15.1 Neither party may assign this agreement without the other party prior written consent, except an assignment to an affiliate on 30 calendar days written notice if the assigning party remains liable. A change of control does not silently replace a contracting party or waive a consent requirement.

16 FORCE MAJEURE

16.1 A party prevented from performing by an event beyond its reasonable control shall notify the other party within 5 calendar days after discovery and provide evidence of the affected obligation and mitigation. Accrued payment obligations are not excused. Relief requires a causal connection and does not apply automatically to every outage or supplier delay.

17 EXCLUSIVITY

17.1 This agreement is non-exclusive. No non-compete or restriction on dealing with other counterparties is imposed except as expressly stated in this clause.

18 TERMINATION FOR CONVENIENCE

18.1 Either party may terminate for convenience by written notice received at the other party legal notice address at least 30 calendar days before the proposed termination date. Accrued payment obligations and express survival provisions remain effective. Any expressly agreed early-exit fee remains subject to its stated conditions.

19 LATE-PAYMENT INTEREST

19.1 Late-payment interest rate: ____ % per month on overdue invoiced principal. The percentage has not been completed. No numeric late-payment interest amount can be determined from this execution copy.